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25VECV02518 KNIPE V FCA

[TENTATIVE] ORDER: Plaintiff Holly Randall Knipe's Motion for Attorneys' Fees is GRANTED but reduced to the reasonable amount of \$30,030.00.

Plaintiff Holly Randall Knipe's Request for an Order Requiring Defendant FCA US LLC to Pay the Attorneys' Fees within 30 days is DENIED.

Introduction

Plaintiff Holly Randall Knipe (Plaintiff) moved for attorneys' fees, costs, and expenses from Defendant FCA US LLC (Defendant). The total in attorneys' fees requested is \$54,622.00, which includes: (1) \$54,262.00 in attorneys' fees (\$5,390.00 for Hovanes Margarian, \$2,479.00 for Armen Margarian, \$36,033.00 for Shushanik Margarian, \$10,360.00 for Akop Jack Ter-Saakyan); legal assistant fees of \$360.00; and (2) a Lodestar multiplier in an amount the Court deems appropriate. Plaintiff further requests an order requiring payment of the fees within thirty days after the Court issues a respective Judgment.

[Plaintiff's citation to "Concepcion v. Amscan Holdings, Inc. (2014) 23 Cal.App.4th 1309" in the Motion contains a typo. (Mtn. pg. 10:2.) The correct citation is 223 Cal.App.4th 1309. Further, Defendant's citations to "Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 152" and "Nightingale, 31 Cal.App.4th at 152" in the opposition also has a typo. (Oppo. pg. 3:11, 5:18, & 7:27.) The page citation of "152" does not exist. The opinion only goes up to pg. 105. In order to avoid sanctions for AI hallucinations, greater care needs to be taken in proofreading your materials.]

Discussion

Plaintiff asserted entitlement to attorneys' fees as the prevailing party under Civil Code, section 1794(d). There is no dispute that Plaintiff is the prevailing party.

Statutory attorney fees are ordinarily determined by the court pursuant to the "lodestar" or "touchstone" method. However, the Court's discretion is limited in fee awards under the Song Beverly Consumer Warranty Act (SBA). The statute takes a different approach from customary statutory or contractual provisions. The statute requires an "initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results

achieved. If the time expended or the monetary charge being made for the time expended is not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” In the situation of a contingency fee arrangement, the court in *Nightingale* stated, “for purposes of section 1794, subdivision (d), a prevailing buyer represented by counsel is entitled to an award of reasonable attorney fees for time reasonably expended by his or her attorney.” (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817-818 (citing to *Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104-105, fn. 6.) In making a lodestar calculation of proper hourly rates to apply, “the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009), the difficulty or complexity of the litigation to which that skill was applied (*Syers Properties [III], Inc. v. Rankin* (2014) 226 Cal.App.4th 691,] at p. 700) . . . and affidavits [from plaintiffs’ attorneys and] from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (*Heritage*, at p. 1009.)” (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437.)

But for the contingency nature of the retention of Counsels, Plaintiff asserted that they would have been charged a total of 85 hours of work by four attorneys (7.4 hours by Hovanes Margarian (Hovanes[1]); 3.7 hours by Armen Margarian (Armen); 14.8 hours by Akop Jack Ter-Saakyan (Ter-Saakyan); 56.7 hours by Shushanik Margarian (Shushanik)) and 2.4 hours by Elmira Oganyan, a legal assistant. (Hovanes Decl. pars. 8, 20, 56, and Exh. A; Armen Decl. pars. 6 and 20; Ter-Saakyan Decl. pars. 4 and 13; and Shushanik Decl. pars. 5-6, and 20-21.) Hovanes, Armen, Ter-Saakyan, and Shushanik are a 20-year attorney, a 9-year attorney, a 16-year attorney, and an 8-year attorney, respectively. (Hovanes Decl. pars. 12-13, 52-53; Armen Decl. par. 12; Ter-Saakyan Decl. par. 3, and Shushanik Decl. par. 17.) All attorneys also attested to their highest level of education and provided citation to other Lemon Law cases where they represented prevailing parties. (Hovanes Decl. pars. 2-4, 17-19, 25-51; Armen Dec. pars. 2-3, 16-18; Ter-Saakyan Decl. pars. 2, 9-12 ; and Shushanik Decl. pars. 2, 3, and 12-16.) The time expended by Hovanes, Armen and Ter-Saakyan are reasonable based upon their education and experience. However, the 56.7 hours charged by Shushanik in prosecuting the instant action is excessive and unreasonable. The Court noted that this action did not involve many procedural demands because there was only one discovery motion that was ultimately withdrawn without being heard. Further, a motion to enforce settlement was also filed but not heard. The difficulty of the litigation was not high. Because the instant action was not highly contentious, the Court is not convinced that the 56.70 hours expended by Shushanik to be reasonable. The Court reduces the hours expended by Shushanik to 20 hours.

The hourly rates charged by each attorney and the years of experience of each attorney are: (1) Hovanes (\$650-\$750/hour; 20-year attorney), (2) Armen (\$550-\$670/hour; 9-year attorney), (3) Ter-Saakyan (\$700/hour; 16-year attorney), and (4) Shushanik (\$550-\$670/hour; 8-year attorney). (Hovanes Decl. par. 10, 14-16; Armen Decl. pars. 11, 13; Ter-Saakyan Decl. par. 7; and Shushanik Decl. pars. 11, 20.) The Court finds that the hourly rates charged by Hovanes and Ter-Saakyan to be reasonable based upon their experience. Hovanes further provided that their legal assistant performed 2.4 hours of work at \$150/hour. (Hovanes Decl. par. 56.) The Court finds that the legal assistant’s time and rate are also reasonable.

However, as to the hourly rates of Armen and Shushanik, the Court finds their rates to be unreasonable and excessive because Armen and Shushanik’s experience to be approximately a decade less than Hovanes’ experience yet the difference in rates are only approximately \$100.00. The Court finds that the difference in rates is insufficient to reflect the large difference in experience between the attorneys. The Court reduces the hourly rates of Armen and Shushanik to \$400.00.

Defendant argued that the fees should be apportioned and only awarded for work performed on the Song Beverly Consumer Warranty Act (SBA) claims and not the tort claims or the Moss Magnuson Moss Warranty Act claims (MMA). Allocation of fees between claims is discretionary upon the Court. (*Pellegrino v. Robert Half International, Inc.* (2010) 182 Cal.App.4th 278, 289.) The Court does not find it necessary to allocate fees to the SBA claims only because all claims are interrelated. All of Plaintiff’s claims are based upon the non-conformities of the vehicle, which form the same grounds as the SBA claim. Further, the Court’s review of the rates and hours, as stated above, provide for a reduction of the fees to a reasonable amount.

Defendant asserted that Plaintiff should not recover fees related to pre-lawsuit research, a premature vehicle inspection; fees related to duplicative, excessive and routine communications; and for fees on the instant motion. Defendant asserted that these fees are not reasonably necessary for the conduct of litigation and/or are excessive. The argument has merit, however, the Court’s review of the overall rates charged and time expended subsumed arguments as to the unreasonableness of fees identified by Defendant.

The Court finds that a reasonable amount in fees to be awarded to Plaintiff is totaled at \$30,030.00 (\$5,390.00 for Hovanes, \$5,920.00 for Armen, \$8,000.00 for Shushanik, \$10,360.00 for Ter-Saakyan, and \$360.00 for Oganyan).

Plaintiff requested a multiplier in an unidentified amount and requested the Court to determine the amount. In determining to augment the fees by a multiplier the Court takes into consideration “various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 819; Serrano v. Priest (Serrano III) (1977) 20 Cal.3d 25, 49.) Plaintiff has the burden of proof to show that the enhancement is primarily to compensate counsel at a rate reflecting the risk of nonpayment in contingency cases as a class. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138 (Ketchum).) The aim is to compensate attorneys at fair market value as an inducement to accept these cases. (Id.) “A trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. Nor should a fee enhancement be imposed for the purpose of punishing the losing party.” (Ketchum, supra, 24 Cal.4th at p. 1139.) The Court further has the discretion to adjust the lodestar downward where appropriate. (Ketchum, supra, 24 Cal.4th at p. 1132, Chavez v. Netflix, Inc. (2008) 162 Cal.App.4th 43, 64.) In the Court’s view, the representation of Plaintiff did not exceed the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rates reviewed above. There was no presentation of any new or novel legal theory to promote Plaintiff’s position. Litigation with Defendant was not highly contentious based upon the lack of any law and motion being heard. The Court file does not show any law and motion disputes being resolved by the Court. Further, the fact that this action took approximately seven months to settle also shows the non-complex nature of the action. The action was filed in May 2025 and Plaintiff accepted Defendant’s 998 Offer in December 2025. On these grounds, the Court declines to award a fee enhancement.

The request for a multiplier is DENIED.

Plaintiff requested a 30-day deadline for the payment of the attorneys’ fees. However, Plaintiff’s request lacks any legal authority for the Court to make such a ruling. Legal issues that may arise after judgment is entered are beyond the scope of the legal authority supporting the request for attorneys’ fees. Without any legal authority presented, the request for a deadline to pay the fees is unpersuasive. It would be akin to ordering a party to pay a judgment within a specified time. There is no legal authority for the court to do so.

The request for a 30-day deadline is DENIED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.

[1] To avoid confusion, the Court used the first names of Plaintiff’s Counsels and does not mean any disrespect.